

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X	
Jonathan Torres and Robert Shand,	:
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	:
Plaintiffs	:
	:
-against-	:
	:
City of New York, New York City Police Department,	:
Police Officer Stephen Tomaszewski, Shield 4126 of the	:
34 Precinct, Sergeant Clifford Scanlon, Shield 3133 of the	:
34 Precinct and New York City Police Officers John Doe,	:
	:
	:
Defendants	:
-----X	

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the causes of action arose in New York County.

Dated: November 10, 2024
BRONX, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Stephen Tomaszewski, Shield 4126 of the 34 Precinct

Sergeant Clifford Scanlon, Shield 3133 of the 34 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Jonathan Torres and Robert Shand,	X	
	:	
	:	
Plaintiffs		VERIFIED COMPLAINT
-against-	:	
City of New York, New York City Police Department,	:	
Police Officer Stephen Tomaszewski, Shield 4126 of the	:	
34 Precinct, Sergeant Clifford Scanlon, Shield 3133 of the	:	
34 Precinct and New York City Police Officers John Doe,	:	
Defendants	:	
	X	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Jonathan Torres, (hereinafter referred to as “TORRES”) is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Robert Shand, (hereinafter referred to as “SHAND”) is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, Police Officer Stephen Tomaszewski, Shield 4126 of the 34 Precinct (hereinafter referred to as “TOMASZWESKI”) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Sergeant Clifford Scanlon, Shield 3133 of the 34 Precinct, (hereinafter referred to as “SCANLON”) was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the Officers involved in the arrest of TORRES and SHAND (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York, State of New York.

7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

8. That on or about April 29, 2024, notice required by Municipal Law 50-E was given to City of New York, by personal service as to both Plaintiffs. Said notice set forth the facts underlying Plaintiffs’ claim against defendants, its agents and employees. To date, no answer has been received by either Plaintiff and no compensation has been offered by the City of New York.

9. That on or about May 21, 2024, a hearing required by Municipal Law 50-H was conducted as to both Plaintiffs. At said hearings, each Plaintiff testified and set forth the facts underlying their claims against defendants, its agents and employees. To date, no answer has been received by either Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

10. That all conditions and requirements precedent to the commencement of this action have been complied with.

11. That this action falls within one or more of the exceptions set forth in CPLR 1602.

12. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiffs’ damages, including but not limited to Plaintiffs’ non-economic loss,

irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants owed the Plaintiffs a non-delegable duty of care.

13. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of Plaintiffs' damages, including but not limited to Plaintiffs' non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

14. That on or about January 5, 2024 at 11:00 PM in the vicinity of Sherman Avenue and Isham Street, New York, New York Plaintiffs were inside of a car, on their way to get some food when they were stopped, handcuffed and arrested by TOMASZEWSKI, SCANLON and DOES without any legal justification or authority.

15. That at no time prior had TORRES or SHAND engaged in any unlawful or illegal conduct that would warrant being stopped.

16. That at no time prior had TORRES or SHAND engaged in any unlawful or illegal conduct that would warrant being searched.

17. That at no time did TORRES or SHAND possess a controlled substance.

18. That after Plaintiffs were arrested they were each removed to the 34 precinct.

19. That while Plaintiffs were inside of the 34 precinct, they were each subjected to a search of their persons wherein nothing illegal or unlawful was recovered.

20. That while Plaintiffs were inside of the 34 precinct, they were each held in a cell with other male prisoners for several hours.

21. That after several hours at the 34 precinct TORRES and SHAND were transported to New York County Central Booking located at 100 Centre Street, New York, New York.

22. That on or about January 7, 2024 TORRES was arraigned on docket CR-000477-24NY, charging him with Criminal Possession of a Controlled Substance in the Seventh Degree.
23. That on or about January 7, 2024 SHAND was arraigned on docket CR-000476-24NY, charging him with Criminal Possession of a Controlled Substance in the Seventh Degree.
24. That at each of their arraignments, Plaintiffs were released and ordered to return to court.
25. That on and between January 7, 2024 and April 11, 2024, TORRES made numerous court appearances until the case was dismissed upon application of the Office of the New York County District Attorney.
26. That on and between January 7, 2024 and April 24, 2024, SHAND made numerous court appearances until the case was dismissed upon application of the Office of the New York County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

27. TORRES repeats, reiterates and realleges the allegations contained in paragraphs 1 through 26, as if more fully stated herein at length.
28. That defendants acted with actual malice toward TORRES and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
29. That as a result of the actions of defendants, TORRES was seriously injured due to the intentional manner in which defendants, their agents, servants, employees and/or licensees treated TORRES and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

30. That the actions of the defendants constituted unreasonable deprivation of liberty without due process of law.

31. That as a result of the actions by defendants, TORRES was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

32. That as a result of the defendants' actions, TORRES has been unable to sleep.

33. That as a result of the defendants' actions TORRES sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

34. TORRES repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. The intentional verbal abuse, physical abuse, false arrest and false imprisonment by defendants violated the rights of the TORRES as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which defendants are individually liable.

36. Defendants having no lawful authority to arrest TORRES, did, nevertheless, unlawfully arrest TORRES with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus, TORRES is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

37. TORRES repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. Defendants conspired to violate TORRES's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which defendants are individually liable. Thus, TORRES is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

39. TORRES repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. TORRES was verbally abused, physically abused, falsely arrested, falsely imprisoned and maliciously prosecuted by defendants in a manner that was extreme, outrageous and unjustified and caused TORRES to suffer physical and severe emotional distress for which the defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution of TORRES by defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of TORRES. TORRES is thus entitled to compensatory and exemplary damages.

41. That during the pendency of the case, defendants maliciously prosecuted TORRES by continuing to cooperate in a prosecution when TORRES should never have been arrested. TORRES is thus entitled to compensatory and exemplary damages.

42. That during the pendency of the case, defendants maliciously prosecuted TORRES by claiming that TORRES possessed a controlled substance when they knew he did not. TORRES is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT**

43. TORRES repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. At all times pertinent hereto, TOMASZEWSKI, SCANLON and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

45. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that TOMASZEWSKI, SCANLON and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT**

46. TORRES repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45, as if more fully stated herein at length.

47. The City of New York and New York City Police Department's failure to provide adequate training and supervision to TOMASZEWSKI, SCANLON and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

48. That the City of New York and New York City Police Department knew and tolerated that members of the NYPD would arrest people, claiming that they possessed a controlled substance, when in fact they did, not constituting a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including TORRES. TORRES is thus entitled to compensatory exemplary damages.

49. That the City of New York and New York City Police Department knew that TOMASZEWSKI was the subject of six (6) prior Civilian Complaint Review Board complaints wherein it was alleged that he violated the civil rights of others, two (2) of which were substantiated for an unlawful vehicle search and abuse of authority and yet they continued to employ him.

50. That the City of New York and New York City Police Department knew that TOMSZEWSKI was the subject of a civil rights lawsuit, Jenny Rodriguez, Individually and as Administratrix for The Estate of Joel Capellan v. City of New York, et al. index number 162237/2023, Bronx County Supreme Court and yet they continued to employ him.

51. That the City of New York and New York City Police Department knew that SCANLON was the subject of nineteen (19) prior Civilian Complaint Review Board complaints and yet they continued to employ him.

52. That the City of New York and New York City Police Department knew that SCANLON was the subject of a disciplinary case, case number 2022-24744 wherein it was determined that SCANLON deactivated body-worn camera prematurely, failed to notify radio dispatcher, failed to prepare a report, failed to provide right to know business card and omitted activity log entries.

53. That the City of New York and New York City Police Department knew that SCANLON was the subject of a civil rights lawsuit, R. R. an Infant By M/n/g Shaniece Hilton, et al. v. City

of New York, et al., index number 518379/2023, Kings County Supreme Court and yet they continued to employ him.

54. That the City of New York and New York City Police Department knew that SCANLON was the subject of a civil rights lawsuit, Mark Dawson v. City of New York, et al., index number 537437/2022, Kings County Supreme Court and yet they continued to employ him.

AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

55. SHAND repeats, reiterates and realleges the allegations contained in paragraphs 1 through 54 as if more fully stated herein at length.

56. That defendants acted with actual malice toward SHAND and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the SHAND.

57. That the actions of the defendants constituted unreasonable deprivation of liberty without due process of law.

58. That as a result of the actions by defendants, SHAND was traumatized and fears for her physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

59. That as a result of the defendants' actions, SHAND has been unable to sleep.

60. That as a result of the defendants' actions SHAND sustained damage to her person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

61. SHAND repeats, reiterates and realleges the allegations contained in paragraphs 1 through 60 if more fully stated herein at length.

62. The intentional verbal abuse, physical abuse, false arrest and false imprisonment by defendants violated the rights of SHAND as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which defendants are individually liable.

63. Defendants having no lawful authority to arrest SHAND, did, nevertheless, unlawfully arrest SHAND with actual malice toward her and with willful and wanton indifference to and deliberate disregard for her constitutional rights. Thus, SHAND is entitled to both compensatory and exemplary damages.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

64. SHAND repeats, reiterates and realleges the allegations contained in paragraphs 1 through 63 as if more fully stated herein at length.

65. Defendants conspired to violate SHAND's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which DEFENDANTS are individually liable. Thus, SHAND is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS

66. SHAND repeats, reiterates and realleges the allegations contained in paragraphs 1 through 65, as if more fully stated herein at length.

67. SHAND was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by defendants in a manner that was extreme, outrageous and unjustified and caused SHAND to suffer physical and severe emotional distress for which the defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of SHAND by defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of SHAND. SHAND is thus entitled to compensatory and exemplary damages.

68. That during the pendency of the case, defendants maliciously prosecuted SHAND by continuing to cooperate in a prosecution when SHAND should never have been arrested. SHAND is thus entitled to compensatory and exemplary damages.

69. That during the pendency of the case, defendants maliciously prosecuted SHAND by claiming that Plaintiff possessed a controlled substance when they knew he had not. SHAND is thus entitled to compensatory and exemplary damages.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT**

70. SHAND repeats, reiterates and realleges the allegations contained in paragraphs 1 through 69, as if more fully stated herein at length.

71. At all times pertinent hereto, TOMASZEWSKI, SCANLON and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

72. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that TOMASZEWSKI, SCANLON and DOES committed within the scope of their employment.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT**

73. SHAND repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45, as if more fully stated herein at length.

74. The City of New York and New York City Police Department's failure to provide adequate training and supervision to TOMASZEWSKI, SCANLON and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

75. That the City of New York and New York City Police Department knew and tolerated that members of the NYPD would arrest people, claiming that they possessed a controlled substance, when in fact they did, not constituting a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including TORRES. TORRES is thus entitled to compensatory exemplary damages.

76. That the City of New York and New York City Police Department knew that TOMASZEWSKI was the subject of six (6) prior Civilian Complaint Review Board complaints wherein it was alleged that he violated the civil rights of others, two (2) of which were

substantiated for an unlawful vehicle search and abuse of authority and yet they continued to employ him.

77. That the City of New York and New York City Police Department knew that TOMSZEWSKI was the subject of a civil rights lawsuit, Jenny Rodriguez, Individually and as Administratrix for The Estate of Joel Capellan v. City of New York, et al. index number 162237/2023, Bronx County Supreme Court and yet they continued to employ him.

78. That the City of New York and New York City Police Department knew that SCANLON was the subject of nineteen (19) prior Civilian Complaint Review Board complaints and yet they continued to employ him.

79. That the City of New York and New York City Police Department knew that SCANLON was the subject of a disciplinary case, case number 2022-24744 wherein it was determined that SCANLON deactivated body-worn camera prematurely, failed to notify radio dispatcher, failed to prepare a report, failed to provide right to know business card and omitted activity log entries.

80. That the City of New York and New York City Police Department knew that SCANLON was the subject of a civil rights lawsuit, R. R. an Infant By M/n/g Shaniece Hilton, et al. v. City of New York, et al., index number 518379/2023, Kings County Supreme Court and yet they continued to employ him.

81. That the City of New York and New York City Police Department knew that SCANLON was the subject of a civil rights lawsuit, Mark Dawson v. City of New York, et al., index number 537437/2022, Kings County Supreme Court and yet they continued to employ him.

WHEREFORE, Plaintiffs each demand judgment against the DEFENDANTS as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the third cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the fourth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the wanton and willful nature of the DEFENDANTS actions;

On the fifth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the sixth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior court;

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the ninth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the tenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the eleventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this

Court and in excess of all inferior courts;

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger

Jason A. Steinberger, Esq.
Attorney for Plaintiffs
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(646) 256-1007

ATTORNEY VERIFICATION

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: November 10, 2024

Jason Steinberger
Jason A. Steinberger